

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Isaac Forman	Team: Squad #01	CCRB Case #: 201809136	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 10/17/2018 4:05 PM	Location of Incident: 215-15 73rd Avenue	18 Mo. SOL 12/2/2020	Precinct: 111
Date/Time CV Reported Wed, 10/31/2018 1:35 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Wed, 10/31/2018 1:35 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Gregory Payea	13712	936079	111 PCT
2. POM Michael Cillis	06160	940007	111 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Gregory Payea	Abuse: Police Officer Gregory Payea stopped § 87(2)(b)	A . Exonerated
B . POM Michael Cillis	Abuse: Police Officer Michael Cillis stopped § 87(2)(b)	B . Exonerated
C . POM Michael Cillis	Discourtesy: Police Officer Michael Cillis spoke discourteously to § 87(2)(b)	C . Unsubstantiated

Case Summary

§ 87(2)(b) filed this complaint with the CCRB via the mail. His letter was received at the CCRB on October 31, 2018.

On October 17, 2018, at approximately 4:05pm, PO Gregory Payea and PO Michael Cillis, both of the 111th Precinct, responded to a radio call following a theft at a CVS across the street from 215-15 73rd Avenue in Queens. The officers obtained a description of the perpetrator and then stopped § 87(2)(b) in front of that address (**Allegations A and B: Abuse of Authority-Exonerated**). While PO Cillis was speaking to § 87(2)(b) he allegedly told § 87(2)(b) “stop fucking yelling” (**Allegations C: Discourtesy-Unsubstantiated**). No summonses were issued or arrests made.

Body Worn Camera (BWC) footage from PO Payea and PO Cillis was provided to the investigation (Board Review 01, 02).

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Gregory Payea stopped § 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Michael Cillis stopped § 87(2)(b)

It is undisputed that PO Payea and PO Cillis stopped § 87(2)(b)

§ 87(2)(b) testified that he was standing at a bus stop, across the street from 215-16 73rd Avenue in Queens, after having shopped for groceries at a Key Foods nearby. He denied having entered the above-mentioned CVS. § 87(2)(b) testified that he was wearing black sweatpants, an orange hoodie, and a grey and black windbreaker, zipped all the way up. He was wearing a navy baseball cap and was carrying four grocery bags. At the time, he had a full white beard and was 60 years old. As § 87(2)(b) stood at the bus stop, PO Payea and PO Cillis exited their marked vehicle and told him that he fit the description of someone who had just stolen items from CVS. PO Cillis asked § 87(2)(b) for his identification while PO Payea went across the street and spoke to a CVS employee (Board Review 03).

At 16:19:59 in PO Payea’s BWC footage, § 87(2)(b) is fully visible. He is wearing black sweatpants, a dark colored windbreaker, and a dark navy baseball cap. He has a white beard. § 87(2)(b) appears to have three to four shopping bags at his feet (Board Review 01).

Stop Report #§ 87(2)(b) indicates that § 87(2)(b) was stopped because he matched a specific description of the alleged perpetrator (Board Review 04).

Event § 87(2)(b) indicates that the description of the alleged perpetrator put over the radio was male, black, gray jacket, black baseball cap, with a white scruffy beard (Board Review 11).

PO Payea and PO Cillis were using digital memo books and thus the officers’ books are the same. The memo book indicates the description provided as male, black, 50-60 years old, dressed in all black, with a white beard, and a black hat (Board Review 12).

PO Payea testified that he and PO Cillis responded to the CVS in question approximately one minute after they received the radio run. There, they spoke to a CVS employee who stated that a

black male had just stolen items from the store. She described the perpetrator as male, black, 50-60 years old, with a white beard, wearing all black, and a black hat. The officers then canvassed briefly before observing § 87(2)(b) standing at a bus stop directly across the street from the CVS. PO Payea described § 87(2)(b) as male, black, 50-60 years old, with a white beard, and a black hat. § 87(2)(b) was holding at least one, but possibly more, plastic grocery bags. PO Payea testified that the officers stopped § 87(2)(b) because he fit the description provided by the CVS employee. The decision to do so was made by both officers (Board Review 05).

PO Cillis' testimony was largely consistent with PO Payea's. After receiving the description noted above, the officers briefly canvassed before observing and stopping § 87(2)(b). PO Cillis' description of § 87(2)(b) was consistent with PO Payea's. PO Cillis also testified that the decision to stop § 87(2)(b) was mutual and that they were stopping him because he fit the description provided by the CVS employee (Board Review 06).

Before an officer may stop a person, there must be founded suspicion that criminal activity is present. People v. De Bour, 40 NY2d 210 (1976) (Board Review 07). An officer may possess the requisite suspicion to stop an individual when that individual fits a description provided by a victim and is found in the proximity of the location soon after the alleged crime. People v. Seiden, 199 A.D.2d 437 (2d Dept 1993) (Board Review 08).

§ 87(2)(g)
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§ 87(2)(g) It is therefore recommended that
Allegations A and B be closed as **exonerated**.

Allegation (C) Discourtesy: Police Officer Michael Cillis spoke discourteously to § 87(2)(b)

§ 87(2)(b) alleged that PO Payea used discourteous language when speaking to him.

§ 87(2)(g)
§ 87(2)(g)
§ 87(2)(g)

§ 87(2)(b) initially alleged that an officer had used profanity in his original written statement but did not provide the specific language of the allegation. In his phone statement, § 87(2)(b) stated that while he was yelling, PO Cillis used profanity in responding to him. § 87(2)(b) could not recall what the specific profanity was. During his sworn statement, he initially did not raise this allegation at all. He was then asked by the investigator to address the contradiction between his original statement and the present one. At that point he testified that, while he was yelling, PO Cillis told him to "stop fucking yelling." § 87(2)(b) testified that this occurred prior to PO Payea returning from speaking to the CVS employee (Board Review 03).

Neither PO Cillis' nor PO Payea's BWC footage captures either officer using any profanity (Board Review 01, 02). Both videos begin as PO Payea returns from speaking to the CVS employee.

PO Cillis testified that § 87(2)(b) was yelling and cursing at the officers. He believed he did ask § 87(2)(b) to stop yelling. He denied telling § 87(2)(b) to, "stop fucking yelling" (Board Review 06).

PO Payea also described § 87(2)(b) as yelling and believed that both officers asked him to stop yelling. He did not hear PO Cillis tell § 87(2)(b) to "stop fucking yelling" (Board Review 05)

§ 87(2)(g)
It is therefore recommended that **Allegation C** be closed as **unsubstantiated**.

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to one CCRB complaint and has been named as a victim in one allegation (Board Review 09):
 - § 87(2)(b)
- PO Cillis has been a member-of-service for 13 years and has been a subject in three CCRB complaints and four allegations, none of which have been substantiated. § 87(2)(g)
- PO Payea has been a member-of-service for 14 years and has been a subject in seven CCRB complaints and 13 allegations, none of which have been substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- On November 8, 2018, this case was sent to mediation and on January 4, 2019, the case returned to investigation as the complaint was no longer eligible for mediation.
- On March 18, 2019, a FOIL request for Notices of Claim was submitted to the New York City Office of the Comptroller. The results of that inquiry will be added to the casefile upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 1

Investigator: _____

	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date